

WAR RHETORIC ON THE BRINK OF DESTRUCTION: JEFFERSON DAVIS AND CONDITINAL EMANCIPATION

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Abstract: This essay investigates how leaders negotiate the tensions generated by war policies that threaten the values a nation holds of itself. I use Confederate President Jefferson Davis's message to the Confederate Congress on November 7, 1864 as a case study in how rhetors can gain legitimation for policies that undermine the national identity. The majority of war rhetoric scholarship has generally looked at the rhetorical strategies that leaders deploy to justify initiating military action. In this instance, however, I explore the sorts of appeals used when leaders have to maintain support for a military commitment. In particular, I argue that Davis's message provides an opportunity to examine how leaders negotiate the tension between the pragmatic demands of war and the ideals which shape a nation's identity. I conclude that Davis's failure to offer a new vision of the Confederacy demonstrates the critical attention that leaders must give to balancing both the pragmatic demands of war and the struggle to maintaining a strong national identity.

By November of 1864, the Confederate States of America had suffered major setbacks in its campaign for independence. Since the beginning of the war, the Union had maintained a material advantage: 850,000 soldiers fought for the Confederacy compared to the Union's 2,100,000 soldiers and, by 1864, the Union was reaping the benefits of war

industrialization including increased iron production, a burgeoning firearms industry, and astounding increases in overall manufacturing (McPherson, 1988). The South, by contrast, was suffering from devastating resource shortages and the damaging effects of having the majority of the war fought on its territory. The Union invasions had destroyed almost all of the South's industries, killed one-quarter of their white men, killed two-fifths of southern livestock, demolished half of the machinery for agriculture, and rendered thousands of miles of railroad useless (McPherson, 1988).

With military resources dwindling and Atlanta, one of the South's largest cities, in enemy hands, Confederate President Jefferson Davis issued a message to the Confederate Congress on November 7, 1864. Tenuously balanced between assertions of victory and explanations for defeat, the message was steeped in the language of desperation and hope. Through forty-one paragraphs, Davis detailed the status of the Confederate fight for independence in an address that would be published and circulated throughout both the North and South. He dedicated the majority of his message to the status of the military campaigns in the East and West, foreign relations with England and France, finances, reorganization of the Department of War, negotiations for peace, and the "Employment of Slaves" (Davis, 1923).

Given that Davis's subject centered on the prosecution of a war and that the message was delivered during a war, the address should serve as a case study in war rhetoric.¹ The majority of scholarship on war rhetoric has

¹ Robert Ivie's (1974) essay, "Presidential Motives for War", helps explain the scope of discourse that is considered war rhetoric. Ivie examines 150 years of presidential addresses in order to, "locate the images they project in the justification of war." Through these images, Ivie begins to answer James Andrews's (1969) call for "Future research (that) could fruitfully examine the questions of whether or not there is a perceptible pattern of war persuasion that emerges from the study of our history" (as quoted in Ivie). War rhetoric, then, is the study of the

generally looked at the rhetorical strategies that leaders deploy to justify the initiation of military action. In this instance, however, I explore the sorts of appeals used when leaders have to maintain support for a military commitment, arguing that Davis's message provides an opportunity to examine how leaders negotiate the tension between the pragmatic demands of war and the ideals that shape a nation's identity.

In order to investigate the relationship between war rhetoric and nationalism, this essay moves in three stages. I first discuss the rhetorical significance of Davis's address and emphasize its potential for studies of war rhetoric. Second, I review the current literature on war rhetoric and nationalism to highlight how Davis's address conforms to the genre of war rhetoric while simultaneously pushing us to extend our understandings of war rhetoric beyond the initiation of a conflict. Third, turning to the strategies that Davis used to gain legitimacy for his war proposals that threatened the core identity of the Confederacy, I examine his struggle for a conditional emancipation for Confederate slaves. I argue that Davis's message was a remarkable rhetorical construction that utilized narrative and inductive argument to legitimize his war policy. Where Davis failed, however, was in constructing an identity for the Confederacy assuming that his policy was implemented. If the South agreed to sacrifice states' rights and the institution of slavery, what would they be fighting for? What would the Confederacy be? Why should they continue to die for it? Davis offered no new vision of the nation even as he undermined its previous identity.

rhetorical strategies that leaders deploy to persuade a populace that military action is justified.

Rhetorical Significance: Desperation in the Final Days of the Confederacy

Although Davis's message covered a wide variety of topics, his section on the "Employment of Slaves" where Davis proposed "a radical modification in the theory of the law" (1923) should interest scholars of war rhetoric and nationalism. The modification that Davis forwarded was a policy of conditional emancipation that would grant freedom to 40,000 slaves after they had helped to secure a Confederate victory through faithful service to the Confederate military effort. Given the significance of slavery and states' rights to the foundation of the Confederacy, Davis's address is an opportunity to investigate the strategies that rhetors can deploy to gain legitimation for a war policy that challenges the fundamental identity of the polity.

In addition to the subject of the address, Davis's status as a political leader facing defeat on American soil is unique in our nation's history. Presidents rarely face defeat, and never on American soil. With the exception of the Civil War, the United States has not faced a protracted conflict on its own territory. As a result, most of our presidential addresses on war focus on justifications for deploying United States soldiers to fight in other places in the world. The American public has been removed from the horrors of a major ground war. The people of the South, in contrast, needed only to look out their windows at the smoke and flames rising from Atlanta or listen to the shells falling over Vicksburg to understand that defeat was literally on their doorstep. There are certainly other examples of political leaders who were forced to justify failing war policies (e.g. Johnson and Nixon on Vietnam, and George W. Bush on Iraq), but because the civil war was a fight for independence, defeat for the Confederacy would signify the end of the nation.

In summary, Davis's address offers new insights into the rhetoric of war because of the timing, location, and

subject of the text. He was facing defeat, the defeat was on American soil, and he was desperate enough to call for a reversal of the Confederacy's position on slavery and states' rights through conditional emancipation. Davis's address provides us with an opportunity to examine how rhetors deploy war rhetoric to justify war policies that threaten the values that constitute the national identity. Given these grounds, it is next appropriate to consider the current approaches to investigating war rhetoric and nationalism.

Current Approaches to War Rhetoric: Initiation and Legitimation

John Murphy (1992) identifies two major streams of war rhetoric research—"the president's justification for war," and, "...studies of presidential rationale for military actions short of war—international crises." After reviewing the scholarship of David Birdsell, Karlyn Kohrs Campbell and Kathleen Hall Jamieson, Richard Cherwitz and Kenneth Zagacki, Bonnie Dow, Robert Ivie, and Theodore Windt, Murphy argues that (despite differing approaches) the majority of war rhetoric research reaches similar conclusions (1992). He identifies Campbell and Jamieson's (1990) generic outline of war rhetoric as the set of unifying themes that exist throughout the majority of war rhetoric scholarship. According to this outline, presidents typically engage in five rhetorical processes during war rhetoric:

- (1) every element in it proclaims that the momentous decision to resort to force is deliberate, the product of thoughtful consideration; (2) forceful intervention is justified through a chronicle or narrative form which argumentative claims are drawn, (3) the audience is exhorted to unanimity of purpose and total commitment; (4) the rhetoric not only justifies the use of force but also seeks to legitimate presidential assumption of the extraordinary powers of the commander in chief; and as a function of these other characteristics, (5) strategic misrepresentations

play an unusually significant role in its appeals (Campbell and Jamieson, 1990)

Although there are a few instances where scholars deviate from this basic outline to discuss presidential actions during a conflict the vast majority of war rhetoric research focuses on the initial decision to intervene rather than the maintenance of political support. Despite the fact that their generic outline focuses on initiation, Campbell and Jamieson articulate the central component of war rhetoric in their discussion of legitimation. Utilizing Davis's discussion of conditional emancipation, we can better understand how legitimation works in the advanced stages of a conflict which requires rhetors to balance conceptions of national identity with pragmatic war decisions.

The goal of gaining legitimation for presidential actions is critical to Campbell and Jamieson's analysis of war rhetoric. They argue: "What is central to war rhetoric: the need for the public and the congress to legitimate presidential use of war powers for an end that has been justified. Each war message has this legitimation as its central persuasive purpose" (1990). For Campbell and Jamieson, legitimation is intimately tied to a president's attempt at gaining consent to use the powers of the commander and chief to initiate a conflict. While Davis demonstrates that legitimacy is also central throughout a conflict, his address requires us to consider the role of nationalism in gaining and sustaining legitimation.

Rhetoric and Nationalism

General studies of nationalism are concerned with investigating how people constitute an identity as a nation. In Benedict Anderson's (1983) germinal book, *Imagined Communities: Reflections on the Origins and Spread of Nationalism*, he argues that the nation is nothing more than "an imagined political community—and imagined as both inherently limited and sovereign." Locating the basis of nationalism in an imagined community places a primacy on

the discourses that construct the community. Unlike other approaches to nationalism that rely on an objective set of criteria, based in political institutions, to determine whether or not a nation has come into existence, Anderson acknowledges the role of public discourse in shaping nations (1983).² In order to understand how Davis generates legitimacy for wartime sacrifices, it is necessary to look beyond the simple existence of political institutions. Umut Ozkirmli (2005) supplements Anderson's analysis and provides a connection between rhetoric and nationalism:

We thus need an alternative conceptualization of nationalism, one that carries us beyond the objective/subjective and cultural/politics dichotomies...these goals can be achieved if we see nationalism as a form of 'discourse', or *as a particular way of seeing and interpreting the world, a frame of reference that helps us make sense of and structure the reality that surrounds us* (original emphasis).

The intersection of nationalism studies and rhetoric helps provide a framework for better understanding Davis's struggle for legitimation in the late stages of the Civil War.

Within rhetorical studies, Michael McGee (1975) and Maurice Charland (1987) have theorized the role of rhetoric in constituting subject positions for certain people. McGee and Charland's articulation of constitutive rhetoric fits nicely with Anderson's theorization of nationalism as an imagined community. Putting Anderson, McGee, and Charland together elucidates the role of rhetoric in studying nationalism. Rhetoric, although often under theorized in nationalism studies, is the essential component to constituting the imagined community. The success or failure of a nation depends on the rhetorical competence of the

² This is especially important given that the Confederate government mirrored the same political institutions that were present in the United States.

individuals with the power and position to construct the vision of nationhood. Vanessa Beasley's (2004) *You, the People: American National Identity in Presidential Rhetoric*, and Mary Stuckey's (2004) *Defining Americans: The Presidency and National Identity* are investigations that treat seriously the role of rhetoric in constituting a national identity. Stuckey focuses on presidential rhetoric and argues that "Presidents...articulate national identity and, to be successful, must do so in ways that will be accepted as obvious, even inevitable" (2004). In this essay, I am interested in how nationalism also relies on presidential war rhetoric to sustain the imagined community during conflict.

Campbell and Jamieson help clarify the role of war rhetoric in constituting the people. They argue that "...presidential war rhetoric constitutes the audience as a united community of patriots that is urged to repulse the threat with all available resources, assured that, with the help of Providence, right will prevail" (1990). The process identified by Campbell and Jamieson, by which presidents construct an audience of patriots, parallels Anderson's larger study of nationalism. For Anderson, the strength of the nation's identity rests upon the strength of the imagined community. When it comes to war, he argues:

Regardless of the actual inequality and exploitation that may prevail in each, the nation is always conceived as a deep, horizontal comradeship. Ultimately, it is this fraternity that makes it possible, over the last two centuries, for so many millions of people, not so much to kill, as willingly to die for such limited imaginings (1983).

Campbell and Jamieson's unanimity of purpose and Anderson's imagined communities intersect to construct a particular role for utilizing nationalism within war rhetoric. Nationalism becomes the path that presidents use to construct an audience of patriots who are willing to sacrifice for the cause. Nationalism helps to explain Jeff Bass's argument that the longer a war continues, the more likely it

is that epideictic appeals will grow (Murphy 1992). With these epideictic appeals comes a focus on nationalism because as a conflict progresses and the sacrifices increase it becomes more important for leaders to articulate a clear vision of their imagined community. The Civil War was no exception. As the conflict drew on and the deaths continued to rise, Jefferson Davis was forced to articulate a clear vision of his imagined community.

There is a significant debate over Davis's success in generating a Confederate national identity. The role of nationalism (or lack thereof) in the defeat of the Confederacy has been the subject of several scholarly inquiries.³ This essay focuses on Jefferson Davis's November 7, 1864 address as a central starting point for examining how he managed an imagined community for the Confederacy while simultaneously undermining its core values. Campbell and Jamieson's outline of war rhetoric combined with Anderson's conceptualization of nationalism points to presidential speeches as an excellent site for examining how these imagined communities function to create legitimacy for war policies.

Although Davis did not ask the Confederate Congress for permission to assume the role of Commander in Chief, he sought legitimation for taking radical actions as commander in chief. Davis's address was an effort to gain legitimation for his proposal to conscript 40,000 slaves to fight for the South in exchange for their freedom. In order to understand more fully how nationalism and legitimation function for Davis, we must turn to the debate over conditional emancipation.

³ See Richard Beringer, et. al (1986), *Why the South Lost the Civil War, and The Elements of Confederate Defeat: Nationalism, War Aims, and Religion* (1988); Paul Escott (1978), *After Secession: Jefferson Davis and the Failure of Confederate Nationalism*; Gary Gallagher (1997), *The Confederate War*; and John Simon and Michael Stevens (1998), *New Perspectives on the Civil War: Myths and Realities of the National Conflict*.

Context of the Emancipation Debate

Jefferson Davis's address was not the first time that emancipation had been proposed in the South. Robert F. Durden (1972) details several early proposals for emancipation, some arising from the Confederate Army itself. One of the most powerful proposals came from Patrick Cleburne of the Army of Tennessee. On January 2, 1864, Cleburne wrote a memorandum that included one major-general, three brigadier-generals, four colonels, two lieutenant-colonels, one captain, and one major pushing for emancipation if the slaves would fight for the Confederacy. The officers argued that there were several military and political benefits: "The immediate effect of the emancipation and enrollment of negroes on the military strength of the South would be: To enable us to have armies numerically superior to those of the North, and a reserve of any size we might think necessary; to enable us to take the offensive, move forward, and forage on the enemy" (1972). It is important to note that the Confederacy had already implemented a policy of conscription, but the officers argued that the Union was still at a numerical advantage that threatened the Confederate armies. The officers further claimed that the move "would instantly remove all the vulnerability, embarrassment, and inherent weakness which result from slavery" (1972). The officers also noted that the policy would also have political benefits. They wrote, "The very magnitude of the sacrifice itself, such as no nation has ever voluntarily made before, would appal[l] our enemies, destroy his spirit and his finances, and fill our hearts with a pride and singleness of purpose which would clothe us with new strength in battle" (1972).

Cleburne's proposal for change, however, did not reach the public or the Confederate Congress. The official policy of the Confederacy, until November 1864, had been to use slaves for support positions such as cooking, building fortifications, and manual labor (Levine, 2006). The problem

was that by 1864, the numbers of white soldiers that the Confederacy could count on to fight was quickly dwindling and the slaves were becoming force multipliers for the Union. When the Union armies drew near to Confederate cities or armies, the slaves would escape and provide intelligence to the Union. Cleburne's memo demonstrates that the shrinking numbers of soldiers and the Union's use of slaves as spies was a severe problem in early 1864. Cleburne argued that, "every soldier in our army already knows and feels our numerical inferiority to the enemy...Our single source of supply is that portion of our white men fit for duty and not now in the ranks" (1972). He continued, "All along the lines slavery is comparatively valueless to us for labor, but of great and increasing worth to the enemy for information. It is an omnipresent spy system, pointing out our valuable men to the enemy, revealing secretly that there is no means to guard against it" (1972).

Despite support by key military figures for conditional emancipation, the role of slaves in the Confederate Army was extremely divisive for two central reasons. First, the Confederacy had clearly designated black people as mentally, physically, and spiritually unfit for citizenry. Second, forced emancipation would necessitate a violation of states' rights which was the Southern justification for secession. In the next two sections I examine the discourses surrounding each of these rhetorical obstacles.

Slavery and the Confederacy

The history of slavery in the South dates back to 1619 when the first black people came to the Virginia colony in bonds (Thomas, 1991). Although the majority of slaves were black, it was not until the mid-seventeenth century that the white majority started making essentialist claims that fixed all black people as slaves (Thomas, 1991). Nevertheless, the argument that black people were naturally inferior engulfed the elite and aristocratic Southern thinkers. Even enlightenment thinkers such as Thomas Jefferson

argued, “as a suspicion only, that blacks, whether originally a distinct race or made distinct by time and circumstances, are inferior to the whites in the endowments both of body and mind” (Thomas, 1991). While this racist thinking was pervasive throughout the country, the cotton boom generated a demand for slave labor that established a new relationship between the South and the institution of slavery. Thomas (1991) argues, “By the end of the first quarter of the nineteenth century, Southern thought had crystallized on the subject . . . slavery changed from a ‘necessary evil’ to a ‘positive good’.”

With a firm “defense” of slavery, the South entered into nineteenth century politics with the goal of preserving and expanding this institution. While states’ rights may have provided the legal justification, it was slavery that provided the political impulse for secession. As Robert Durden summarizes, “The South had spent forty or so years convincing itself that slavery was ordained by God as the best, indeed the only, solution to the problem posed by the massive presence of the Negro” (1972). As a result, any potential threat to slavery was treated as a threat to the Southern way of life. Thomas makes the final connection between the Southern way of life, slavery, and the Civil War when he argues, “If the South seceded and went to war to defend her way of life against threats real and imagined, surely the ‘peculiar institution’ was the most threatened portion of Southernism, and thus in this context the ‘cause’ of the Civil War” (1991). The question remains, however, did the national identity of the Confederacy truly rest on preserving slavery or was it merely the motivation for secession?

The recognition of the inferiority of black people was the defining characteristic of the Confederacy according to Vice President Alexander Stephens. In a speech in Savannah, Georgia on March 21, 1861, he argued, “Our new government is founded upon exactly the opposite idea; its foundations are laid, its corner-stone rests upon the great

truth, that the negro is not equal to the white man; that slavery—subordination to the superior race—is his natural and normal condition” (1972). The cornerstone of the Confederacy, according to Stephens, was the Confederacy’s belief in the institution of slavery and the inferiority of black people.

Not surprisingly, several newspaper editorials supported Stephens’ view that emancipation would threaten the core of Southern society, fearing that conditional emancipation would result in complete equality for black people. The newspaper *The Republican* summarized this position on November 2, 1864, stating that “if the negro is made to fight our battles of ‘freedom’ then he must be governed by the same laws of war, and he must stand upon the same footing of the white man after the war” (1972). The editorial clarified, “In other words, the South is to be converted by this war into an abolitionized colony of free negroes, instead of a land of white freemen...If they are to be armed like the master, then they *are in fact* equal to the master...” (1972).

The threat of potential equality for slaves was supplemented by charges that slaves would not make adequate soldiers. A Confederate soldier wrote an editorial in the *Memphis Appeal*, on November 3, 1864, rejecting the idea that slaves would make good soldiers. He wrote, “The Yankees for eighteen months have had negroes in their armies; and from what they say, got very little good fighting out of them. Would it be any better if they were in our armies? I think not, and if it is ever tried disaster and defeat will follow in its train” (1972).

Other editorials argued that the Confederacy seceded in order to preserve slavery and, therefore, to emancipate the slaves would make the fight meaningless. An editorial published in the *Enquirer* argued, “What has embittered the feelings of the two sections of the old Union? What has gradually driven them to the final separation? What is it that has made two nationalities of them, if it is not slavery?”

(1972). The editorial continues with an answer: “It was slavery that caused them to denounce us [as] inferiors; it was slavery that made the difference in our Congressional representatives; it was slavery which made the difference in our pursuits, in our interests...it is slavery which now makes of us two people, as widely antagonistic and diverse as any two people can be...” (1972). The editorial establishes the link between slavery and separate national identities; the maintenance and expansion of the institution of slavery became the central reason that the South needed its own nation. The South had a special relationship with slavery that, by the 1860s, had grown into its central defining characteristic.

States’ Rights and the Confederacy

In 1798 Thomas Jefferson wrote a set of resolutions to respond to the Federalist Alien and Sedition Acts. His argument was that the states had voluntarily agreed to participate in the Union and therefore it was a compact. The implication was that, “...as in all other cases of compact among parties having no common Judge, each party has an equal right to judge for itself, as well of infractions as of the mode and measure of redress” (Thomas, 1991). Jefferson’s resolutions were later adopted by the Kentucky legislature and have become known as the Kentucky Resolutions. As Thomas points out, “Southerners eventually appropriated Jefferson’s position that the Union was a compact of sovereign states and reasoned that the ultimate ‘mode and measure of redress’ was secession, withdrawal from the compact” (Thomas, 1991).

Perhaps no person was more responsible for articulating the Southern understanding of states’ rights than John C. Calhoun. Calhoun, once vice-president under Andrew Jackson, adapted Jefferson’s position to develop his own theory of nullification, reasoning that a state could declare a federal law null and void without leaving the Union (Thomas, 1991). Calhoun saw his position as a

compromise between tyranny and secession, and, in 1832, South Carolina tested Calhoun's theory by declaring the tariffs of 1828 and 1832 null and void within the state. In response, Andrew Jackson's "Force Bill" signaled that he was willing to send troops to enforce the federal law, although conflict was avoided as Henry Clay negotiated a compromise tariff. The debate over states' rights went unresolved and Calhoun resigned as vice-president to become a powerful Southern Senator from South Carolina and a proponent of states' rights. When he died in 1850 many Southern politicians adopted his theory without any of the Unionist sentiments; instead they preferred the threat of secession as the ultimate defense of the Southern way of life.

As the political conflict over slavery escalated, the Southern politicians depended on states' rights to provide protection for the institution of slavery. In his post-war apologia, Jefferson Davis (1881) argued that the South seceded because of states' rights and not slavery. He wrote, "The question of the right or wrong of the institution of slavery was in no wise involved in the sectional controversies." He continued, "They were essentially struggles for sectional equality or ascendancy—for the maintenance or the destruction of that balance of power or equipoise between North and South, which was early recognized as a cardinal principle in our Federal system." This post-war sentiment demonstrates how states' rights became a sophisticated legal argument that provided political cover for slavery. According to Thomas, "It was a political habit of mind so long and so articulately used to defend the Southern way of life that finally it became inseparable from that way of life."

In his November 1864 address, however, Davis was forced to justify violating the rights of the Confederate States in order to conscript slaves into the Confederate Army. The conscription of slaves to fight for the Confederate Army was perceived as a great violation of states' rights because slaves were viewed as property. The Charleston *Mercury* published

a staff editorial that summarized this argument on November 3, 1864: “Now, if there was any single proposition that we thought was unquestionable in the Confederacy it was this—that the States, and the States alone, have the exclusive jurisdiction and mastery over their slaves” (1972). It continues, “To suppose that any slaveholding country (i.e., state) would voluntarily leave it to any other power than its own, to emancipate its slaves, is such an absurdity, that we do not believe a single intelligent man in the Confederacy could entertain it” (1972). Any attempt by Jefferson Davis to propose emancipation would first have to justify the exercise of power by the Confederacy over the states. As Thomas (1991) summarizes, “...Southern politicians had raised the doctrine of state rights to the level of an article of faith. And as such, state rights seemed to some Southerners the very cornerstone of their way of life.”

An examination of the public discourse published before Jefferson Davis’s address reveals several constraints to gaining popular and congressional legitimation for his proposal to emancipate 40,000 slaves. Although he had several pockets of support, Davis was entering a hostile debate that challenged not only his specific proposal but also his institutional authority as commander in chief. Davis was addressing the people of the Confederacy at a time of great peril and asking them to sacrifice two of the strongest community values that tied the Confederacy together—slavery and states’ rights.

Davis’s Credibility

Davis’s struggle for legitimation for conditional emancipation was compounded by his own wartime credibility. Despite having been the head of the Department of War under Franklin Pierce, Davis had come under increasing attack from within the Confederacy. Throughout the war, Davis’s military decisions had angered various groups throughout the Confederacy. Davis was accused of focusing too much on the battles in the East to the detriment of the military leaders in the West. The accusation generated

a “Western Concentration bloc” that was staunchly opposed to Davis’s policies (Castel, 1992). Additionally, Davis had already begun to violate states’ rights with his policies concerning conscription of property and his military draft (Escott, 1978). Unfortunately for Davis, these unpopular policies were not turning the tide of the war.

Historian William Davis (2001) argues, “By the winter of 1864-1865 certainly no one needed a clairvoyant to sense that the South was all but on its knees. The war appeared to start well..., but numbers and resources and time all worked against Jefferson Davis and his cause.” As the South’s vision of complete independence began to slip away, Davis’s war policies came under attack from prominent Confederate voices including Vice President Alexander Stephens, Robert Toombs, Robert Barnwell Rhett, General P.G.T. Beauregard, and General Joseph Johnston (Davis, 2001). Stephens was convinced that the Confederate states needed to exert more independence to resist Davis’s policies while others advocated more radical solutions including an open call from Rhett to overthrow Davis and install Robert E. Lee as leader. Toombs, who also advocated using violence to overthrow Davis, summarized the opposition’s position when he roared, “Begone Davis!” (Davis, 2001).

If Davis was going to be successful in getting his policy of conditional emancipation passed, he was going to have to overcome the criticism of his war policies from the other prominent Confederate voices. Davis thus entered into his message facing three streams of discourse that inhibited his rhetorical invention: pro-slavery advocates, states’ rights advocates, and opposition from within the Confederacy.

Rhetorical Strategies for Legitimation

Four years into the most destructive war in United States history, Jefferson Davis proposed a radical change in the way the Confederacy should prosecute the war. The change would require sacrificing the two core values that constituted the Confederate national identity at a time when

his credibility as commander in chief was dwindling. In an effort to gain legitimation for his policy of conditional emancipation Davis delivered an address to the Confederate Congress that deployed three rhetorical strategies. First, Davis carefully constructed a narrative of military operations that established his credibility as a wartime leader while simultaneously isolating troop resources as the central impediment to more Confederate victories. Second, Davis constructed his audience as the persecuted chosen people in order to frame the meaning of the Confederate military losses. Finally, Davis used the unanimity of purpose of his audience to propose his radical policy change. Despite the fact that Davis's message was carefully constructed to justify his radical war policies, he ended his message without establishing a vision of the Confederacy after his policy.

Narrative and Inductive Argument

Davis began his quest for legitimation by constructing a narrative of Confederate battles from the past year⁴ He began by dividing the Confederacy along the Mississippi river into the West and the East. In the West, he argued that Texas, Louisiana, Arkansas, and Missouri had all been sites of large Confederate military successes. He proclaimed, "Our forces have penetrated into central Missouri, affording to our oppressed brethren in that State an opportunity...of striking for liberation from the tyranny to which they have been subjected" (1923). Davis was just as exuberant about the status of Confederate forces in the East. Again he listed the Confederate victories in Alabama, Mississippi, and Tennessee. Davis's use of the broad geographic markers "West" and "East" ensured that everyone in the Confederacy could celebrate the military successes. Davis's narrative of Confederate victories also

⁴ For an extended discussion of narrative theory see Walter Fisher (1984), *Narration as a Human Communication Paradigm: The case of Public Moral Argument*.

functioned to restore his credibility because, according to the narrative, the Confederacy was winning crucial battles and he was orchestrating the charge.⁵

Although Davis's explanation of Confederate victories was clear and concise, a closer examination of the narrative reveals a more nuanced argumentative structure. Davis's narrative is tenuously balanced between assertions of victory and explanations for defeat. Within this balance, the difference between victory and defeat was the resource that Davis would later ask for—soldiers. The inductive argument that Davis used from the beginning of the message was that the number of soldiers on the field dictated the Confederacy's chances at winning battles. Davis continually emphasized the overwhelming force of the Union to prepare his audience for the introduction of his plan for conditional emancipation. Davis characterized the conflict in terms of resources and soldiers early in the message when he described the status of the Union and Confederate war efforts. When describing the Union, Davis sounded in awe of “the magnitude of the preparations made by the enemy, the number of his forces, the accumulation of his warlike supplies...” In contrast, the Confederacy, Davis argued, deserved to be applauded for its successes given “the

⁵ It is important to understand that the victories that Davis cites were not inaccurate, but that the Confederacy was still facing military defeat. The explanation rests in the Union military strategy which was concerned with concentrating major forces against major Confederate armies. The Union was not necessarily concerned with attempting to occupy the entire South, but instead to destroy the Confederacy's war making capacity. As a result of this strategy, the Confederacy could easily move back into lands that the Union had once occupied but subsequently left. This strategy is summarized in Castle's (1992) discussion of the Meridian Mississippi Campaign. Castle argues that Sherman attacked Meridian and destroyed the railroads, repair shops, barracks, an arsenal, and a hospital. His attack was so efficient and surprising, however, that by the time the Confederate reinforcements arrived, Sherman had moved on. Much to Sherman's surprise, the newspapers reported the campaign as a victory for the Confederacy because Sherman was unable to go on from Meridian to Mobile or Montgomery.

numbers and means at our disposal for resistance.” Davis continued to develop a pattern of description that consistently emphasized the number of soldiers for both Union and Confederate armies. For instance, when describing three separate battles, Davis put a primacy on the size of the armies involved. In these three examples, Davis used the number of soldiers available for assaults, defensive lines, and reinforcements to paint a picture of valiant Confederate forces being overrun by a sea of Union soldiers. Davis’s references to the numbers of soldiers involved in battles remains consistent throughout his narrative of the Confederate victories and losses.

In order to further his argument for conditional emancipation, Davis needed to position the Confederacy in a unique space. At the outset, he needed to construct a narrative that the South could still win independence with sufficient troop resources. However, given the grave sacrifice that he was proposing, Davis needed to simultaneously dismiss any other potential solution to the imminent Southern defeat. Davis carefully constructed this narrative by pointing to the recent Confederate victories, arguing that soldiers were critical to the victories, and highlighting that the Confederacy was quickly running out of soldiers.

Despite his exultation of Confederate victories, Davis was faced with a significant rhetorical problem that is unique to advanced stages of a conflict: his side had lost major battles and faced defeat. In order for his narrative to remain cohesive, Davis needed to create a framework of meaning for the wide resource disparity and recent military losses. Davis turned to a second rhetorical strategy of constructing his audience as the persecuted chosen people.

Davis and the Persecuted Chosen People

Religion plays a critical role in Davis’s narrative from the very beginning of the message. He began by constituting the North as an evil enemy who was willing to

pour all of its resources into ensuring the destruction of the South. This opening portion of Davis's speech is very closely related to Campbell and Jamieson's description of the narrative forms in war rhetoric that justify military response to an evil opponent (1990). However, the distinction between the initial stages of a conflict and the advanced stages of a conflict becomes clearer when Davis attempts to reconcile the recent military losses.

Instead of using strategic misrepresentations to dismiss the claims that the Union had a strategic advantage over the Confederacy, Davis used the continued survival of the Confederacy in the face of the Union's resource advantage as evidence of divine intervention. He embraced the vast resources of the Union and highlighted the structural disadvantages of the Confederacy. Although this introduction would seem problematic for leaders attempting to gain legitimacy from their people, Davis used the Union's overwhelming advantage to demonstrate that the South was truly God's chosen people.

He began by examining the Union's strength. Davis asked his audience to consider "the magnitude of the preparations made by the enemy, the number of his forces, the accumulation of his warlike supplies, and the prodigality with which his vast resources have been lavished in the attempt to render success assured." He then compared the Union's resources to the Confederacy. He explained "When we contrast the numbers and means at our disposal for resistance, and when we contemplate the results of a struggle apparently so unequal, we cannot fail...to perceive that a power higher than man has willed our deliverance." He concluded that the people should have been grateful, "...to recognize the protection of a kind Providence in enabling us successfully to withstand the utmost efforts of the enemy for our subjugation." Davis used the persistence of his audience as evidence of God's intervention. Their continuing existence demonstrated a divine intervention because they were still living outside the control of the Union, the vast

resources of which should have enabled it to decimate the Confederacy long before 1864. However, Davis continued to point to the Union's troop advantage as a way of cautioning his audience. In Davis's narrative, the enemy would continually pour troops onto the battlefield in an effort to conquer the South. Divine intervention had helped them survive on fewer resources, but it was up to the people of the South to ensure that they were doing all that they could to sacrifice for the cause. At some point, they must recognize that God helps those who help themselves.

Davis also used the wisdom of God to frame the recent Confederate losses. He once again began by emphasizing how much more powerful the Union armies should have been in comparison to the Confederate armies. He proclaimed, "If we now turn to the results accomplished by the two great armies, so confidently relied on by the invaders as sufficient to secure the subversion of our Government and the subjugation of our people to foreign domination, we have still greater cause for devout gratitude to Divine Power." Davis' introduction ensured that the audience was always considering how much worse things could have been as he addressed the specific instances of Union victories.

The capture of Atlanta was front and center in Davis's message. He argued, "The army of General Sherman, although succeeding at the end of the summer in obtaining possession of Atlanta, has been unable to secure any ultimate advantage from this success." Davis continued, "The same general, who in February last marched a large army from Vicksburg to Meridian with no other result than being forced to march back again, was able, by the aid of greatly increased numbers and after much delay, to force a passage from Chattanooga to Atlanta..." Davis did not simply call the army a Union army, but instead personalized the discussion by naming General Sherman. Naming Sherman directly helped substantiate his argument that the Union was not the chosen people and allowed Davis to assert

that General Sherman commanded a wide array of power with no divine wisdom. According to Davis, without divine wisdom, General Sherman was a military failure. Davis turned to Sherman's personal history to emphasize this point. He argued that Sherman had a history of having control of powerful armies, but not having the wisdom to know what to do with them. Davis suggested that it was the sheer number of Sherman's troops that led to Atlanta's fall, but that it took Sherman a long time to capture such a defenseless city. Davis used Sherman to create a synecdoche whereby the ignorant leader represented the whole of the Union army. In doing so, Davis was able to frame the Confederate losses as a result of brute power and not brilliant military strategy.

Davis used the capture of Atlanta to frame the entirety of the Confederate losses. He argued that Sherman lacked wisdom and therefore had gained no military advantage from his victory. Davis used this as a transition point for discussing all of the Confederate cities that could be captured. He argued, "The lessons afforded by the history of this war are fraught with instruction and encouragement. Repeatedly during the war have formidable expeditions been directed by the enemy against points ignorantly supposed to be of a vital importance to the Confederacy." Davis argued that there were no cities that the Union could capture that would break the Confederacy. The people of the Confederacy were the chosen people which meant that should continue to fight for their divine right to independence. Davis's narrative was now complete; the only structural disadvantage inhibiting Confederate Independence was the sheer magnitude of the Union armies and he had a proposal for that very problem.

Davis Proposes Emancipation

Davis's section on the conditional emancipation is entitled, "Employment of Slaves." In this section, Davis asked the Confederate Congress to conscript 40,000 slaves and train them to fight for the Confederacy. Given the

tremendous sacrifice that his proposal required, Davis could not merely rely on his earlier inductive argument and narrative. In this section Davis addressed the states' rights advocates and pro-slavery advocates who would be staunchly opposed to his proposal.

Davis began by reviewing the various roles played by slaves in the Confederate war effort. He reminded the audience that the Confederate Congress had already conscripted 20,000 slaves for use in non-combat positions. After establishing that a legal precedent had already been set for the Confederate Government to conscript slaves into service for the war effort, Davis proposed his "radical modification in the theory of the law."

In order to circumvent the states' rights argument, Davis proposed that slaves have two distinct relationships to any governing institution. The first relationship was that of property. Davis had already established that the Confederate Government had the power to confiscate property if it was necessary for the war effort. He acknowledged that this was traditionally a states' rights domain. However, the second relationship involved the connection that all people had to their governing institutions. He argued, "The slave, however, bears another relation to the State—that of a person. The law of last February contemplates only the relation of the slave to the master and limits the impressment to a certain term of service." In this radical move, Davis asserted that the slaves were not only property, but instead people who could aid in the war effort. If they were just property, then they would clearly fall in the domain of the master and the states, but as people, the Confederate government could conscript them to perform the duties of a soldier. The only question was whether the right to private property would outweigh the right of the Confederate government to use the "personhood" of the slaves for the war effort.

Davis immediately argued that the "personhood" of slaves was more important than their status as property. He argued, "In this respect the relation of person predominates

so far as to render it doubtful whether the private right of property can consistently and beneficially be continued, and it would seem proper to acquire for the public service the entire property in the labor of the slave..." Although Davis was quick to argue that the slave owners should have been fully compensated for their loss of property, Davis proposed that the war effort was ultimately more important than individual's property and states' rights because the need for the slaves' "personhood" was more beneficial to the Confederacy than their status as property.

Davis's justification for emancipation centered on the need for loyalty among soldiers, which is a distinctly human quality. Davis used loyalty to answer the argument that the slaves should have been conscripted to fight without giving them their freedom. He argued, "The permission would doubtless be more readily accorded as a reward for past faithful service...their freedom and the gratification of the local attachment which is so marked a characteristic of the negro, and forms so powerful an incentive to his action." Davis continues, "The policy of engaging to liberate the negro on his discharge after service seems to me preferable to that of granting immediate manumission, or that of retaining him in servitude." Davis, thus, used racial stereotypes to justify conditional emancipation. He argued that "local attachment" was a characteristic of slaves that made them more willing to fight for the Confederacy if they were offered their freedom and the ability to stay in the South. He attempted to assuage the fears of immediate emancipation by arguing that faithful execution of duties would be a condition of freedom. The condition helped Davis answer the equality argument that opponents had been making throughout the debate. Slaves would never be equal to white people; however, if they were willing to die for the Confederacy then they should be given the opportunity to fight for their freedom.

After setting out his legal precedent for conscription, Davis turned to his last rhetorical strategy: using the

unanimity of purpose to justify radical actions. Davis attempted to situate himself in the middle of the debate by arguing that slaves should only be used when the Confederate resources were in dire straits. The presumption against using the slaves was important because Davis used the survival of the Confederacy as a trump argument for conditional emancipation. As we saw earlier, Davis constructed his audience as the persecuted chosen people who were willing to make any sacrifices to achieve independence. Davis used the unanimity of purpose to argue that all people in the Confederacy should be willing to make sacrifices for independence. He used a worst case scenario to argue that, “should the alternative ever be presented of subjugation or of the employment of the slave as a soldier, there seems no reason to doubt what should then be our decision.” He continued, “The appalling demoralization, suffering, disease, and death which have been caused by partially substituting the invader’s system of police for the kind relation previously subsisting between the master and slave have been a sufficient demonstration that external interference with our institution of domestic slavery is productive of evil only.”

Davis used the unanimity of purpose to establish that survival of the Confederacy should have been the ultimate goal of anyone making sacrifices for the Confederacy. Then, he forwarded the debate by arguing that it would have been better for the Confederacy to make the changes to the institution of slavery than for the Union to interfere with the institution, resulting in death, disease, and demoralization. In essence, Davis denied the ability of his opponents to continue arguing for the “good old days” by highlighting the inevitability of change for the institution of slavery.

Conclusion

Jefferson Davis’s message to the Confederate Congress on November 7, 1864 provides scholars with unique insight into war rhetoric on the brink of destruction. I

have argued that Davis's message both reaffirms and extends the generic outline of war rhetoric provided by Campbell and Jamieson and used by many scholars of war rhetoric today. By focusing on war rhetoric that occurs later in a conflict we open up an avenue to new research that focuses on how rhetors navigate the rhetorical dilemmas created by war itself. Besides serving as a case study for later stage war rhetoric, the analysis of Davis's message directs us toward two tentative conclusions. First, Davis's message was a pragmatically effective speech. Second, while effective, Davis's failure to offer a new vision of the Confederacy demonstrates the critical attention that leaders must give to balancing both the pragmatic demands of war and the struggle to maintaining a strong national identity.

Given the tumultuous context of the emancipation debate and the power of the slavery and state's rights, it is difficult to conclude that his address was anything but an exemplary model for negotiating the pragmatic demands of war. He successfully structured the address, through inductive argument, to ensure that his audience was prepared for his radical war policy that threatened to undermine the fundamental values that defined the populace. Davis framed the Confederate losses and ensured that they were willing to make any sacrifice in the name of independence by constructing his audience as the chosen people. Finally, Davis situated the Confederacy as a nation on the brink of collapse, but still able to win independence by carefully balancing a message of optimism and pessimism. Through these rhetorical strategies, Davis was able to establish the critical component of war rhetoric outlined by Campbell and Jamieson—legitimation.

In the end, Davis was successful in gaining legitimacy for his proposal. It is difficult to argue that any one speech had the direct effect of achieving such a dramatic shift in Confederate policy. Some historians have suggested that it was the influence of Robert E. Lee's support for Davis's proposal that helped it pass (Durden, 1972), but the

fact remains that it was Davis's proposal and the Confederate Congress did authorize Jefferson Davis to recruit up to 300,000 slaves to fight for the Confederacy (Thomas, 1991). Some slaves were immediately recruited, put into companies, and even paraded in Southern cities, but none of the slaves ever fought for the Confederacy because the war ended before they were put into official service (Thomas, 1991).

The second conclusion we can draw is that while pragmatically effective, Davis's failure to offer a new vision of the Confederacy demonstrates the critical attention that leaders must give to balancing both the pragmatic demands of war and the struggle to maintaining a strong national identity. Thomas (1991) points to Davis's proposal to substantiate his argument that by the end the Confederacy sacrificed everything it purportedly seceded to protect. He argues, "Faced with choosing between independence and the Southern way of life, the Confederacy chose independence. . . The fact was that the Confederacy was prepared to let slavery perish and to fight on! For what?" Thomas surmises that the decision to sacrifice the institution of slavery signaled the official change from the Confederacy using secession to preserve Southern values to the Confederacy sacrificing Southern values to preserve secession. He argues, "In four years the Southern nation had given up that which called it into being. Independence at last was no longer means but end...Had the heavens opened, the waters parted, and the Confederacy achieved independence, the postwar South would have resembled the prewar South in little more than name" (1991). Escott (1978) makes the final connection between nationalism and the collapse of the Confederacy, "Internal dissensions seriously weakened the Confederacy, for there is a clear link between the failure of Jefferson Davis to build a spirit of Confederate nationalism at home and the inability of southern generals to establish Confederate independence on the battlefield." In the end, Davis was not rhetorically competent enough to sustain the Confederacy

because he did not articulate a vision of the imagined community without slavery and states' rights.

As Garry Wills (1992) has noted, we now point to Abraham Lincoln's Gettysburg Address as the defining point in our history where our national identity was constructed. At Gettysburg, Lincoln needed to justify the Union's participation in the Civil War. Instead of focusing on policies to increase the Union war effort, Lincoln used 272 words to construct an identity that Americans hold onto today. As Wills notes, we now date the nation from the opening words of the Declaration of Independence and not the Constitution. Davis's message utilized the opposite strategy; he focused entirely on the policy with little regard for the national identity. As a result, the Confederacy's imagined community became synonymous with independence for the sake of independence, which did little to motivate soldiers and civilians during a time of great sacrifice.

Recent conflicts reveal that presidents still find themselves attempting to justify wartime policies that threaten the identity of the nation. The torture at Abu Ghraib, the detentions without charge at Guantanamo bay, the loss of civil liberties from the PATRIOT Act, the public disclosure of C.I.A. operatives, the domestic spying program, rendition programs, and the increased use of racial profiling have all come under attack because they represent challenges to the imagined identity of the United States. Davis's address demonstrates that there is a careful balance between justifying policies that sacrifice identity and those that sacrifice victory. For the Confederacy, wartime policies threatened the core identity of the imagined community and may have precipitated its collapse. It is difficult to argue that today's controversial wartime policies require the same degree of sacrifice, but the tension between war policies and national identity still exists and still requires our political leaders to address it. Given the historical implications of the tension and the potential impact of any wartime decision in

the nuclear age, it is important that scholars continue to investigate how leaders negotiate and justify decisions that threaten the core values that America has come to represent.

References

- Anderson, B. (1983). *Imagined communities: Reflections on the origins and spread of nationalism*. New York: Verso.
- Andrew, J. (1969). They chose the sword: Appeals to war in nineteenth-century American public address. *Today's Speech*, 17, 3-8.
- Beasley, V. (2004). *You, the people: American national identity in presidential rhetoric*. College Station: Texas A&M University Press.
- Beringer, R. (1988). *The elements of confederate defeat: Nationalism, war aims, and religion*. Athens: University of Georgia Press.
- Beringer, R., et. al. (1986). *Why the south lost the civil war*. Athens: University of Georgia Press.
- Campbell, K. K., & Jamieson, K. H. (1990). *Deeds done in words: Presidential rhetoric and the genres of governance*. Chicago: University of Chicago Press.
- Castel, A. (1992). *Decision in the west: The Atlanta campaign of 1864*. Lawrence, KS: University of Kansas Press.
- Charland, M. (1987). Constitutive rhetoric: The case of the peuple quebécois. *Quarterly Journal of Speech*, 73, 133.
- Charleston Mercury. (1972). November 3, 1864. In R. Durden (Ed.), *The gray and the black: The confederate debate on emancipation*. Baton Rouge: Louisiana State University Press.
- Cleburne, P. R. (1972). Commanding general, the corps, division, brigade, and regimental commanders of the army of Tennessee. In R. Durden (Ed.), *The gray and the black; the confederate debate on emancipation*. Baton Rouge: Louisiana State University Press.
- Davis, J. (1881). *The rise and fall of the confederate government*. New York: Appelton.

- Davis, J. (1923). Message to congress. In D. Rowland (Ed.), *Jefferson Davis, constitutionalist, letters, papers, and speeches*. Jackson: Mississippi Department of Archives and History.
- Davis, W. (2001). *An honorable defeat: The last days of the confederate government*. New York: Harcourt, Inc.
- Durden, R. (1972). *The gray and the black: The confederate debate on emancipation*. Baton Rouge: Louisiana State University Press.
- Enquirer. (1972). November 4, 1864. In R. Durden (Ed.), *The gray and the black: The confederate debate on emancipation*. Baton Rouge: Louisiana State University Press.
- Escott, P. (1978). *After secession: Jefferson Davis and the failure of confederate nationalism*. Baton Rouge: Louisiana State University Press.
- Fisher, W. R. (1984). Narration as a Human Communication Paradigm: The case of Public Moral Argument. *Communication Monographs*, 51, 1-22.
- Gallagher, G. (1997). *The confederate war*. Cambridge: Harvard University Press.
- Ivie, R. (1974). Presidential motives for war. *Quarterly Journal of Speech*, 60, 337-345.
- Levine, B. (2006). *Confederate emancipation: Southern plans to free and arm slaves during the civil war*. New York: Oxford University Press.
- McGee, M. C. (1975). In search of 'the people': A rhetorical alternative. *Quarterly Journal of Speech*, 61, 235-249.
- McPherson, J. (1988). *Battle cry of freedom: The civil war era*. New York: Oxford University Press.
- Memphis Appeal. (1972). November 3, 1864. In R. Durden (Ed.), *The gray and the black: The confederate debate on emancipation*, 92.
- Murphy, J. (1992). Epideictic and deliberative strategies in opposition to war: The paradox of honor and expediency. *Communication Studies*, 43, 65-78
- Ozkirimli, U. (2005). *Contemporary debates on nationalism: A critical engagement*. New York: Palgrave MacMillian.

- Rowland, D. (Ed.). (1923). *Jefferson Davis, constitutionalist, letters, papers, and speeches*. Jackson: Mississippi Department of Archives and History.
- Simon, J., & Stevens, M. (1998). *New perspectives on the civil war: Myths and realities of the national conflict*. Madison: Madison House.
- Stephens, A. (1972). March 25, 1861. In R. Durden (Ed.), *The gray and the black: The confederate debate on emancipation*. Baton Rouge: Louisiana State University Press, 7-8.
- Stuckey, M. (2004). *Defining Americans: The presidency and national identity*. Lawrence: University Press of Kansas.
- The Republican. (1972). November 2, 1864. In R. Durden (Ed.), *The gray and the black: The confederate debate on emancipation*, (pp. 49). Baton Rouge: Louisiana State University Press.
- Thomas, E. (1991). *The confederacy as a revolutionary experience*. Columbia: South Carolina Press.
- Wills, G. (1992). *Lincoln at Gettysburg: The words that remade America*. New York: Simon & Schuster.

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